

1 SENATE BILL NO. 251

2 INTRODUCED BY D. LENZ

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4 A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING LAWS RELATED TO THE OFFICE OF
5 THE CHILD AND FAMILY OMBUDSMAN; PROVIDING THAT MATTERS UNDER INVESTIGATION ARE
6 CONFIDENTIAL; AND PROVIDING DISCLOSURE EXCEPTIONS."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 NEW SECTION. Section 1. Confidentiality -- disclosure exceptions. (1) The office of the child and
11 family ombudsman shall treat all matters under investigation as confidential. Information received, collected,
12 and maintained by the office of the child and family ombudsman may not be disclosed or disseminated except
13 as provided by this part.

14 (2) (a) Records of the office of the child and family ombudsman may be disclosed to a court for in
15 camera inspection if relevant to an issue before the court. Except as provided in subsection (2)(b), the court
16 may permit disclosure in a proceeding if the court finds disclosure to be necessary for the fair resolution of an
17 issue.

18 (b) Except as provided in 41-3-1214, the identity of a person that contacts or files a request for
19 assistance from the ombudsman is confidential.

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21 NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an
22 integral part of Title 41, chapter 3, part 12, and the provisions of Title 41, chapter 3, part 12, apply to [section 1].

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